

**4-960.2. Affirmation in support of expungement; upon release without conviction.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO  
COUNTY OF Example County  
\_\_\_\_\_ JUDICIAL DISTRICT COURT

In re \_\_\_\_\_, Petitioner. No.

**AFFIRMATION IN SUPPORT OF EXPUNGEMENT**  
***(Upon Release without Conviction)***

I, \_\_\_\_\_, (*Petitioner name*), am requesting the expungement of records under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction), and hereby affirm the following:

☐ No charge or criminal proceeding is pending against me in any state or federal court in the United States.

**OR**

☐ The following charge(s) or criminal proceeding(s) are pending against me in New Mexico state court:

\_\_\_\_\_  
\_\_\_\_\_

☐ The following charge(s) or criminal proceeding(s) are pending against me in another state court: \_\_\_\_\_

\_\_\_\_\_

☐ The following charge(s) or criminal proceeding(s) are pending against me in federal court:

\_\_\_\_\_  
\_\_\_\_\_

**I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.**

\_\_\_\_\_  
(*Petitioner Signature*)

\_\_\_\_\_  
(*Print Name*)

\_\_\_\_\_  
*Street Address*

\_\_\_\_\_  
*City*

\_\_\_\_\_  
*State*

\_\_\_\_\_  
*Zip Code*

\_\_\_\_\_  
(*Telephone*)

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]